

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JESSICA GILCES, MICHAEL MAIDMAN, BRANDON
JOHN-FRESO, and MARVYN WILLIAMS,

SUMMONS

Index No.:

Plaintiffs,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
STACIA WALKER, Shield No. 16159, NYPD POLICE
LIEUTENANT HONG CHEN, NYPD OFFICER
RICHARD LUGO, Shield No. 4717, NYPD POLICE
OFFICER MARIO BUENO, Shield 11861 and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Plaintiffs designate Kings
County as the place of trial.

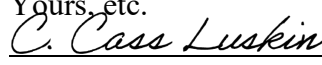
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 19, 2022

Yours, etc.

C. Cass Luskin, Esq.
Shulman & Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER STACIA WALKER, Shield No. 16159 – 94th PCT -- 100 Meserole Ave, Brooklyn, NY 11222

NYPD POLICE LIEUTENANT HONG CHEN – 94th PCT -- 100 Meserole Ave, Brooklyn, NY 11222

NYPD POLICE OFFICER RICHARD LUGO, Shield No. 4717 -- 94th PCT -- 100 Meserole Ave, Brooklyn, NY 11222

NYPD POLICE OFFICER MARIO BUENO, Shield No. 11861, 84th PCT -- 301 Gold St, Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JESSICA GILCES, MICHAEL MAIDMAN, BRANDON
JOHN-FRESO, and MARVYN WILLIAMS,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
STACIA WALKER, Shield No. 16159, NYPD POLICE
LIEUTENANT HONG CHEN, NYPD OFFICER
RICHARD LUGO, Shield No. 4717, NYPD POLICE
OFFICER MARIO BUENO, Shield 11861, NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs GILCES, MAIDMAN, JOHN-FRESO and WILLIAMS, by their attorneys,
Shulman and Hill, PLLC, as and for their Verified Complaint herein, allege upon information and
belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 10, 2020, at approximately 5:00 p.m., Plaintiffs, while lawfully in the vicinity of 17 Monitor Street, County of Kings, New York, were subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers, who subsequently arrested Plaintiffs, forwarded allegations they knew to be false to prosecuting authorities, and maliciously prosecuted Plaintiffs. Plaintiffs were deprived of their constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff JESSIC GILCES is a resident of the state of New York.

3. Plaintiff MICHAEL MAIDMAN is a resident of the state of New York.

4. Plaintiff BRANDON JOHN-FRESO is a resident of the state of New York.
5. Plaintiff MARVYN WILLIAMS is a resident of the state of New York.
6. NYPD POLICE OFFICER STACIA WALKER, Shield No. 16159 is and was at all times relevant herein an Officer with the New York City Police Department.
7. NYPD POLICE OFFICER STACIA WALKER, Shield No. 16159 is being sued in their individual and official capacity.
8. Currently and at all times relevant herein, NYPD POLICE OFFICER STACIA WALKER, Shield No. 16159 was assigned to the 94th Police Precinct of the NYPD.
9. NYPD POLICE LIEUTENANT HONG CHEN is and was at all times relevant herein an Officer with the New York City Police Department.
10. NYPD POLICE LIEUTENANT HONG CHEN is being sued in their individual and official capacity.
11. Currently and at all times relevant herein, NYPD POLICE LIEUTENANT HONG CHEN was assigned to the 94th Police Precinct of the NYPD.
12. NYPD OFFICER RICHARD LUGO, Shield No. 4717 is and was at all times relevant herein an Officer with the New York City Police Department.
13. NYPD OFFICER RICHARD LUGO, Shield No. 4717 is being sued in their individual and official capacity.
14. Currently and at all times relevant herein, NYPD OFFICER RICHARD LUGO, Shield No. 4717 was assigned to the 94th Police Precinct of the NYPD.
15. NYPD POLICE OFFICER MARIO BUENO, Shield 11861 is and was at all times relevant herein an Officer with the New York City Police Department.
16. NYPD POLICE OFFICER MARIO BUENO, Shield 11861 is being sued in their individual and official capacity.
17. Currently and at all times relevant herein, NYPD POLICE OFFICER MARIO BUENO, Shield 11861 was assigned to the 84th Police Precinct of the NYPD.
18. NYPD Police Officers John Does Numbers one through ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. NYPD Police Officers John Does Numbers one through are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

23. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On October 10, 2021, at approximately 9:00 a.m., Plaintiffs all learned that their friend Mya had been assaulted by her roommate, OLUKAYODE EDDO, at her apartment at 17 Monitor Street, Brooklyn, NY 11222.

28. Over the course of October 10, 2021, from around 9 a.m., until dinnertime, all plaintiffs came to 17 Monitor Street to assist their friend Mya.

29. Plaintiffs JOHN-FRESO was the first to arrive, and he met with Mya and Mya's parents, who had also come to 17 Monitor Street to support their daughter.

30. Plaintiff JOHN-FRESO sat with Mya .

31. Soon after Plaintiff JOHN-FRESO entered Mya's apartment, EDDO opened the door to the apartment.

32. EDDO threatened Plaintiff JOHN-FRESO and repeatedly requested the Plaintiff JOHN-FRESO come outside and fight him.

33. Plaintiff JOHN-FRESO declined to fight EDDO and EDDO left.

34. On information and belief, Mya's parents were arriving at 17 Monitor Street at this time and encountered EDDO in the lobby.

35. EDDO also made threats against Mya's parents, who subsequently called the police.

36. Plaintiff GILCES arrived around the same time that EDDO was threatening Mya's parents.

37. Two officers from the 94th precinct responded to 17 Monitor Street.

38. Named defendant officer STACIA WALKER, Shield No. 16159, was one of the two responding defendant officers.

39. Plaintiffs GILCES and JOHN-FRESO, along with Mya's parents, met with responding defendant officers.

40. Responding defendant officers were told about how EDDO had hit and slapped Mya, had trapped her in an elevator, had made threats against Plaintiff JOHN-FRESO and had made threats against Mya's parents.

41. Responding defendant officers told Mya that since she didn't have any bruises, they could not take any official action, make an arrest, bar EDDO from the building, or otherwise protect her from future incidents.

42. Plaintiff JOHN-FRESO expressed concern directly to responding defendant officers that EDDO would come back and engage in violent and/or assaultive behavior again.

43. Responding defendant Officers, including named defendant officer STACIA WALKER, ignored this concern, took no further official action, and left the building at 17 Monitor Street.

44. Subsequently and over the course of the morning and afternoon, the other Plaintiffs arrived at 17 Monitor Street.

45. That evening, EDDO arrived back at the building at 17 Monitor Street.

46. EDDO confronted all of the plaintiffs in a group, telling them he was a boxer and inviting plaintiffs to fight him.

47. Plaintiffs all declined to fight EDDO.

48. Plaintiffs, concerned for their safety, began to film the interaction.

49. EDDO, without provocation, began to scream at Plaintiff WILLIAMS and delivered a two-handed shove to Plaintiff WILLIAMS chest and also struck another person present with Plaintiffs.

50. Plaintiffs then observed EDDO making a false 911 call.

51. Plaintiff's overheard EDDO telling the 911 dispatcher that "Black Lives Matters protestors" are coming to hurt him.

52. Plaintiffs then decided to go themselves to the 94th Precinct in order to file a police report.

53. While Plaintiffs were in the lobby, a number of defendant officers arrived into the lobby.

54. These officers were, on information and belief, dispatched from the 94th Precinct and included named Defendant Officers Hong Chen and Richard Lugo.

55. Upon arrival, the 94th precinct defendant officers began to talk with both parties.

56. Defendant Officer LUGO met with Plaintiff WILLIAMS and GILCES and viewed the video showing that EDDO was in fact attacking the Plaintiffs.

57. Defendant Officer LUGO then said "I think we got this one wrong."

58. Moments later, other defendant police officers flooded into the 17 Monitor Street Lobby.

59. At this time, without any lawful basis or reason therefore, defendant officers began to arrest the Plaintiffs.

60. On information and belief, Defendant Officers were eager to arrest, use excessive force against, assault, batter, falsely imprison, deny the fair trial rights of and maliciously prosecute the Plaintiffs.

61. Defendant Officers were eager to do so because of EDDO's false 911 call wherein he identified the Plaintiffs as "Black Lives Matter" protestors.

62. Defendant Officers deliberately ignored video and witness evidence in their possession that Plaintiffs had not committed a crime because they wanted to beat up "Black Lives Matter" protestors.

63. At this time, named Defendant Officer Bueno, for no reason, shoved Plaintiff WILLIAMS facefirst against the wall, placed him in handcuffs, and dragged him outside.

64. In the course of arresting Plaintiffs, Defendant Officers used excessive force, thereby causing injury to Plaintiffs GILCES, MAIDMAN, and JOHN-FRESO.

65. Plaintiff WILLIAMS suffered injuries to his wrists from the overtight handcuffs and a laceration to his leg.

66. Plaintiff GILCES suffered bruising, serious injuries to her wrist and a concussion.

67. Plaintiff MAIDMAN suffered significant injuries to the ankle such that they could not walk without crutches for weeks afterwards.

68. While in custody, Plaintiffs were refused phone calls and water. Plaintiff GILCES at one point requested water and was told by defendant officers that, "this isn't the fucking Holiday Inn."

69. Despite Plaintiff's requests for assistance and medical attention for injuries, defendants refused to provide medical attention.

70. On information and belief, Plaintiffs were denied water, phone calls and medical attention because Defendant Officers believed them to be "Black Lives Matter" protestors.

71. Plaintiffs GILCES and MAIDMAN were released with Desk Appearance Tickets after approximately 12 to 15 hours of custody.

72. Plaintiffs WILLIAMS and JOHN-FRESO were transported to Brooklyn Central Booking, and were held for approximately 30 hours before going before a Judge and being released on their own recognizance.

73. While Plaintiffs were in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime.

74. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiffs GILCES and MAIDMAN were engaged in Disorderly Conduct and Obstruction of Governmental Administration.

75. All Plaintiffs had to attend numerous subsequent court dates.

76. All plaintiffs had their cases subsequently dismissed and sealed.

77. Plaintiff JOHN-FRESO hired private counsel and missed numerous days from work as a result of the case.

78. All Plaintiffs suffered serious emotional injury from the trauma of the false arrest and the extreme stress of defending themselves against unfounded criminal charges subsequently.

79. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

80. To the extent that Defendant Officers had information from EDDO that a crime had been committed, they also had unequivocal exculpatory evidence in the form of Plaintiff's prior complaints that day, Plaintiff's own statements, and cell phone video footage, that they ignored in making their arrests.

81. At no point did defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

82. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

83. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

84. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

85. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

87. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

88. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

91. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

92. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

93. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

94. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

95. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

96. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

99. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights: Excessive Force

100. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

101. The use of excessive force by defendants by, amongst other things, roughly handcuffing, grabbing, throwing and stomping on the individual Plaintiffs respectively, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Assault

103. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

104. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

105. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Battery

109. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

110. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiffs, when they, in a hostile and/or offensive manner roughly handcuffed, grabbed, threw and stomped on the various Plaintiffs respectively, thereby brutally effecting arrests of Plaintiffs without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery.

111. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

115. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

116. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

117. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

118. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

119. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

120. Defendants failed to intervene to prevent the unlawful conduct described herein.

121. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, their liberty was restricted for an extended period of time, they were put in fear of their safety, their injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.

122. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

123. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

124. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

126. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

128. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

129. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

130. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

131. As a result of the foregoing, Plaintiffs sustained, *inter alia*, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

132. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

133. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

134. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

135. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

136. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

137. Defendants commenced and continued a criminal proceeding against Plaintiff.

138. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

139. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

140. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

141. Defendants despite being aware that Plaintiff was suffering a variety of injuries from the defendants use of excessive force and therefor required additional treatment from medical professionals, Defendants delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

142. The delay in medical treatment to Plaintiff's injuries resulted in increased severity in Plaintiffs' injuries that would have been prevented if Plaintiffs received treatment in a timely manner.

143. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

144. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

145. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

146. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

147. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

148. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

149. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

150. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

151. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

152. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 19, 2022

By: C. Cass Luskin
C. Cass Luskin, Esq.
Shulman & Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER STACIA WALKER, Shield No. 16159 – 94th PCT -- 100 Meserole Ave, Brooklyn, NY 11222

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NYPD POLICE OFFICER MARIO BUENO, Shield No. 11861, 84th PCT -- 301 Gold St,
Brooklyn, NY 11201

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 19, 2022

C. Cass Luskin
C. CASS LUSKIN